
Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of Heffingen

1/9

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Deliberation no. 11FR/2023 of July 24, 2023

The National Commission for Data Protection sitting in a restricted formation composed of Ms. Tine A. Larsen, President, and Messrs. Thierry Lallemand and Marc Lemmer, Commissioners;

Having regard to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016

on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC;

Having regard to the law of August 1, 2018 organizing the National Commission for Data Protection and the general regime on data protection, in particular its Article 41;

Having regard to the internal rules of the National Commission for Data Protection adopted by decision no. 3AD/2020 dated January 22, 2020, in particular its Article 10 point 2;

Having regard to the regulation of the National Commission for Data Protection concerning the investigation procedure adopted by decision no. 4AD/2020 dated January 22, 2020, in particular its Article 9;

Considering the following:

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of Heffingen

2/9

I. Facts and Procedure

During its deliberation session on December 9, 2022, the National Commission for Data Protection sitting in plenary formation decided to open an investigation with the Municipal Administration of Heffingen, located at 2, am Duerf, L-7651

Heffingen (hereinafter referred to as the "controlled entity"), based on Article 38 of the law of August 1, 2018 organizing the National Commission for Data Protection and the general regime on data protection (hereinafter: the "law of August 1, 2018") and to appoint Mr. Alain Herrmann as the head of the investigation.

The said decision specified that the investigation conducted by the National Commission for Data Protection (hereinafter: the "CNPD" or the "National Commission") aimed to verify the application and compliance with Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter: the "GDPR") and the law of August 1, 2018 and legal texts providing specific provisions regarding the protection of personal data and more specifically the application and compliance with Articles 37.1. a) and 37.7 of the GDPR¹. The investigation specifically aimed to verify compliance with the obligation to appoint a Data Protection Officer (hereinafter: "DPO") and to communicate the contact details to the supervisory authority. It followed a general verification that the CNPD had conducted with all Luxembourg municipalities during the summer of 2022.

The controlled entity was informed of the opening of the investigation against it by letter from the head of the investigation dated February 3, 2023. In this letter, the head of the investigation requested the controlled entity "to kindly take note of the initial findings below:

By letter dated August 11, 2022, the President of the CNPD reminded the Mayor of his obligation to appoint a Data Protection Officer (hereinafter the "DPO"), as well as his obligation to notify the CNPD of this appointment (DOCUMENT 1).

1 Deliberation No. [...] of December 9, 2022, of the National Commission for Data Protection regarding the opening of an investigation mission with the Municipal Administration of Heffingen.

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of Heffingen

3/9

In the absence of a response from the Mayor, the President of the CNPD sent him a reminder dated September 23, 2022 (DOCUMENT 2).

As of the date of drafting this letter, and after consulting the register of data protection delegates, the investigating officers did not identify any designation of a DPO for your municipality.

The controlled party responded to the opening letter of the investigation by email on February 8, 2023. At the conclusion of his investigation, the head of the inquiry notified the controlled party on March 31, 2023, of a communication of grievances detailing the breach he considered constituted in this case concerning the requirements prescribed by Article 37.1.a) of the GDPR (obligation to designate a DPO).

The head of the inquiry proposed to the National Commission sitting in a restricted formation (hereinafter: the "Restricted Formation") to adopt a corrective measure.

The opportunity to submit written observations on the communication of grievances was offered to the controlled party. The latter did not provide any observations to the head of the inquiry.

The President of the Restricted Formation informed the controlled party by letter dated May 23, 2023, that their case would be included in the agenda of the Restricted Formation meeting on July 11, 2023, and that they were offered the possibility to be heard. The controlled party informed the Restricted Formation by email on July 7, 2023, that they would not attend the said meeting.

During this meeting, the head of the inquiry presented his oral observations in support of his written observations and answered questions posed by the Restricted Formation.

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of Heffingen

4/9

II. In Law

II.1. On the grounds for the decision

On the breach related to the obligation to designate a DPO and to communicate their contact details to the CNPD

1. On the principles

In accordance with Article 37.1.a) of the GDPR, any data controller or processor must designate a DPO if the "processing is carried out by a public authority or body, except for courts acting in their judicial capacity."

Based on Article 37.7 of the GDPR, any data controller or processor is also obliged to communicate the contact details of the DPO to the supervisory authority, which in this case is the CNPD.

In its guidelines regarding DPOs, the Article 29 Working Party specified the relevant provisions of the GDPR in this area to assist data controllers and processors in complying with the legislation, as well as to support DPOs in their role.

It should be noted that the European Data Protection Board, which succeeded the Article 29 Working Party on May 25, 2018, has adopted and reaffirmed the documents adopted by the said Working Party between May 25, 2016, and May 25, 2018, including the aforementioned guidelines.

2. In this case

The head of the inquiry noted in his communication of grievances that "at the date of the opening of the investigation, and after consulting the register of data protection delegates,

2 The guidelines regarding DPOs were adopted by the Article 29 Working Party on December 13, 2016. The revised version (WP 243 rev. 01) was adopted on April 5, 2017.

3 See decision Endorsement 1/2018 of the EDPB of May 25, 2018, available at: https://edpb.europa.eu/sites/edpb/files/files/news/endorsement_of_wp29_documents_en_0.pdf.

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of Heffingen

5/9

data, the investigating agents did not identify a designation of a DPO for the Municipal Administration of Heffingen." Furthermore, it was noted that the controlled entity "designated a DPO on February 7, 2023, that is, after the opening of the investigation." Consequently, it was concluded that "the conditions of Article 37, paragraph (1) point a) of the GDPR were not respected."⁴

The Restricted Formation wishes to emphasize that the controlled entity is a Luxembourg municipal administration and, as such, a public body required to have designated a DPO no later than May 25, 2018, the date of application of the GDPR.

It further notes that the controlled entity only responded on February 8, 2023, to the letter from the head of the investigation dated February 3, 2023, informing it of the opening of the investigation against it. Attached to this letter dated February 8, 2023, was an excerpt from the minutes of the deliberations of the municipal council of the controlled entity concerning the meeting of February 7, 2023, during which it was decided to designate the Government Commissioner for Data Protection as the DPO.

Moreover, the Restricted Formation observes that by email dated February 20, 2023, the controlled entity sent the DPO declaration form to the CNPD, signed and dated on the same day.

It can therefore only agree with the finding of the head of the investigation that at the date of the opening of the investigation, namely December 9, 2022, the controlled entity had not yet designated a DPO, despite reminder letters from the CNPD dated August 11, 2022, and September 23, 2022.

In light of the above, it concludes that at the beginning of the investigation, the controlled entity failed to meet its obligation under Article 37.1. a) of the GDPR.

Furthermore, the Restricted Formation notes that at the date of the opening of the investigation, the controlled entity had not communicated the contact details of its DPO to the CNPD in accordance with Article 37.7 of the GDPR. Therefore, since the monitoring of compliance with the said article was within the scope of the investigation in question (see point 2 of this decision),

4 Communication of grievances, points 16 to 18.

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of Heffingen

6/9

the Restricted Formation considers that the controlled entity also failed to meet its obligation under Article 37.7 of the GDPR.

II. 2. On corrective measures

1. On the principles

In accordance with Article 12 of the law of August 1, 2018, the National Commission has the powers provided for in Article 58.2 of the GDPR:

"a) warn a data controller or a processor that the intended processing operations are likely to violate

the provisions of this regulation;

b) reprimand a data controller or a processor when the processing operations have resulted in a violation of the provisions of this regulation;

c) order the data controller or the processor to comply with requests made by the data subject in order to exercise their rights under this regulation;

d) order the data controller or the processor to bring the processing operations into compliance with the provisions of this regulation, where appropriate, specifically and within a determined timeframe;

e) order the data controller to communicate a personal data breach to the data subject;

f) impose a temporary or definitive limitation, including a prohibition, on the processing;

g) order the rectification or erasure of personal data or the limitation of processing in accordance with Articles 16, 17, and 18 and the notification of these measures to the recipients to whom the personal data have been disclosed in accordance with Article 17, paragraph 2, and Article 19;

h) withdraw a certification or order the certification body to withdraw a certification issued in accordance with Articles 42 and 43, or order the certification body to

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of Heffingen

7/9

certification not to issue certification if the applicable requirements for certification are not or are no longer met;

i) impose an administrative fine pursuant to Article 83, in addition to or in place of the measures referred to in this paragraph, depending on the specific characteristics of each case;

j) order the suspension of data flows addressed to a recipient located in a third country or to an international organization.”

In accordance with Article 48 of the law of August 1, 2018, the CNPD may impose administrative fines as provided for in Article 83 of the GDPR, except against the State or municipalities.

The Restricted Formation wishes to clarify that the facts taken into account in the context of this decision are those established at the beginning of the investigation. Any subsequent changes regarding the data processing subject to the investigation, even if they allow for full or partial compliance to be established, do not retroactively annul an established breach.

Nevertheless, the steps taken by the controlled party to comply with the GDPR during the investigation procedure or to remedy the breaches identified by the head of the investigation in the communication of grievances are taken into account by the Restricted Formation in the context of any corrective measures to be pronounced.

2. In this case

In the communication of grievances, the head of the investigation “proposes to the Restricted Formation to issue a reprimand against the Controlled party stating that it must comply with the applicable legislation regarding the appointment of a data protection officer.” 5

Regarding the corrective measure proposed by the head of the investigation and by reference to point 22 of this decision, the Restricted Formation takes into account the steps taken by the controlled party to comply with the provisions of Articles 37.1.a) and 37.7 of the GDPR, as detailed in its letter of February 8, 2023, and its email of February 20, 2023.

In particular, it notes that on February 8, 2023, the controlled party sent the head of the investigation an excerpt from the minutes of the deliberations of the controlled party's municipal council regarding the meeting of February 7, 2023, during which it was decided to appoint the Government Commissioner for Data Protection to the State as DPO. Furthermore, by email on February 20, 2023, the controlled party sent the DPO declaration form to the CNPD, signed and dated the same day.

Nevertheless, at the time of the opening of the investigation, the controlled party had neither appointed a DPO nor communicated their contact details to the CNPD.

For these reasons, the Restricted Formation believes that it is appropriate to impose the corrective measure proposed by the head of the investigation in this regard and reiterated in point 22 of this

decision and to reprimand the controlled party for violating Articles 37.1.a) and 37.7 of the GDPR. Finally, pursuant to Article 52 of the law of August 1, 2018, the “CNPD may order, at the expense of the sanctioned person, the full or partial publication of its decisions, except for decisions relating to the imposition of penalties, and subject to:

1° the remedies against the decision being exhausted; and

2° the publication not posing a disproportionate risk of harm to the parties involved.”

The Restricted Formation considers that the publication of this decision does not pose a disproportionate risk of harm to the controlled party, but is justified in light of the public interest in knowing the results of the general audit that the CNPD conducted with all Luxembourg municipalities during the summer of 2022.

Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Municipal Administration of Heffingen

8/9

Given the developments outlined above, the National Commission sitting in a restricted formation, after deliberation, decides:

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to uphold the breaches of Articles 37.1.a) and 37.7 of the GDPR;

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to issue a reprimand against the Municipal Administration of Heffingen for violating Articles 37.1.a) and 37.7 of the GDPR;

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to publish the decision on the website of the National Commission as soon as the remedies are exhausted.

Belvaux, July 24, 2023,

The National Commission for Data Protection sitting in a restricted formation,

Tine A. Larsen

Thierry Lallemand

Marc Lemmer

President

Commissioner

Commissioner

Indication of remedies

This administrative decision may be subject to an appeal for reform within three months following its notification. This appeal must be brought before the administrative court and must necessarily be introduced through a lawyer from one of the Bar Associations.